

Stolen Childhoods

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Stolen Childhoods

“I’ve had a long time to think about what I did when I was 13,” says Catherine Jones, current staff member of the Campaign for the Fair Sentencing of Youth. “That was how old I was when I ceased to be a daughter, sister, niece, student, and friend and became instead a murderer, super predator, killer, felon, criminal, and inmate.” Her story does not focus on the brutal abuse that led to the murder of her stepmother, nor does it try to absolve or excuse her actions. However, it does highlight the sixteen years she spent in prison after being charged with second degree murder as a thirteen-year-old. “I was a broken, abused child using a child’s logic in making a decision with very adult consequences,” she says, “[and] I want people to understand that I was still a child, despite what I did, and so are the others like me.”

Part One: The Lasting Harms of Punitive Discipline

The purpose of this paper is to show that young children involved with the justice system are seriously and unjustly harmed by disruptions to their health, liberty and future development. These harms disproportionately affect children from marginalized racial and socioeconomic backgrounds, perpetuating systemic inequalities and reinforcing cycles of poverty and incarceration. In this section, I will argue that by restricting capabilities outlined by Martha Nussbaum, the harms faced by incarcerated youth meet the sufficient and necessary conditions to be classified as oppression.

Scope of the Problem

According to Virginia Department Of Education’s 22-23 Enrollment Data, black students – roughly 22% of Virginia’s K-12 enrollment – experienced 42% of all forms of exclusionary

discipline, from in school suspension to referrals to law enforcement. Furthermore, they also made up almost 50% of students in alternative placement¹.

Racial disparities are not limited to punitive discipline in schools. Of the 265,000 children arrested in the United States in 2021, 1 in 3 were black children, even though black children constitute only 15% of the nation's youth population². Concerningly, the National Association of Social Workers reported that black children made up 47.3% of the youth transferred to adult courts, limiting their access to diversion or probation programs that favor juveniles³, and further exposing them to greater violence.

Extent of Impact

The harms discussed above are not just limited to juvenile delinquents. The study "Police Contact and the Legal Socialization of Urban Teens" examines how both personal and vicarious contact with police influence adolescents' perceptions of legal legitimacy. This study focuses only on police stops investigated in over 3000 adolescents from 20 large US cities, and showed that stops characterized by aggressive or disrespectful police treatment are significantly correlated with a decreased perception of the legitimacy of legal system.⁴ Although personal contact had the greatest effect of reducing perceptions of legal legitimacy⁵, a significant decrease

¹Huerta, Clara. "Assessment of Virginia's Disability Services Program: The School to Prison Pipeline." *Virginia Board for People with Disabilities*. June 30, 2022. This is important because students who are subject to alternative placement are at risk for further suspension or expulsion, and exclusion from an alternative placement means that these students have been denied their last opportunity for educational services.

² Children's Defense Fund. "2023 State of America Children Report/Youth Justice". *Children's Defense Fund*. Accessed Feb 13, 2025.

³ Thomas Esq., Jeree Michele; Wilson, Mel. "The Color of Juvenile Transfer: Policy and Practice Recommendations" (National Association of Social Workers, 2017), <https://www.socialworkers.org/LinkClick.aspx?fileticket=30n7g-nwam8%3D&portalid=0#:~:text=Black%20youth%20are%20approximately%2014,the%20services%20of%20their%20court.>

⁴ Amanda Geller and Jeffrey Fagan, "Police Contact and the Legal Socialization of Urban Teens," *Russel Sage Foundation Journal of the Social Sciences* 5, no. 1 (February 5, 2019): 26–49, <https://doi.org/10.7758>. Confounding factors such as race, age, gender, SES and personal behavioral characteristics such as delinquency were controlled for.

⁵ Geller and Fagan, "Police Contact." Personal contact $R^2 = 2.48$

in legitimacy scores is observed even with just vicarious contact⁶, that is, hearing about a friend being aggressively or disrespectfully stopped by the police.

In turn, evidence suggests that those with increased legal cynicism do not consider the system to be legitimate, or fair, threatening their practical reason and development of morality. A cross-sectional study of 633 participants shows that criminal offending is significantly shaped by legal cynicism, and this effect is independent of individual behavioral factors such as self-control⁷. Since marginalized communities are overpoliced⁸, there is an increased likelihood that adolescents in these regions have more negative interactions with law enforcement, resulting in increased legal cynicism and greater potential for consequent law-violating behavior.

Furthermore, Rise For Youth, a campaign supporting restorative juvenile justice points out that for every year spent in a youth prison in Virginia, a young person's probability of being arrested for another crime when they get out increases by a third. When put in context with the disproportionate arrests within marginalized communities, the negative impacts of initial contact with the justice system are therefore exponentially increased for black children.

Capabilities Approach

The capabilities approach, developed by Martha Nussbaum and Amartya Sen, assesses well-being by examining an individual's real opportunities to achieve valuable life outcomes.

Nussbaum distinguishes between capabilities – a person's potential to achieve well-being – and

⁶ Geller and Fagan, "Police Contact." Vicarious contact $R^2 = 0.87$

⁷ Michael D. Reisig, Scott E. Wolfe, and Kristy Holtfreter, "Legal Cynicism, Legitimacy, and Criminal Offending: The Nonconfounding Effect of Low Self-Control," *Criminal Justice and Behavior* 38, no. 12 (2011): 1265–79. Legal cynicism and criminal offending behavior have a standardized regression coefficient of $\beta = 0.336$ ($p < 0.01$). When accounting for low self-control, effect remains significant but is reduced to $\beta = 0.247$ ($p < 0.01$).

⁸ Nazgol Ghandnoosh and Celeste Barry, "One in Five: Disparities in Crime and Policing," The Sentencing Project, November 2, 2023, <https://www.sentencingproject.org/reports/one-in-five-disparities-in-crime-and-policing/>; cites the nationwide study Tapp, S. N., & Davis, E. J. (2022). Contacts between police and the public, 2020. Bureau of Justice Statistics, which shows that "after pulling a driver over for a traffic stop in 2018, officers nationwide searched Black and Latinx drivers 1.7 and 2.6 times as often as whites, respectively."

functioning, or the actual actions and states that constitute a flourishing life. Nussbaum would say that justice system involvement severely restricts the capabilities of young children, limiting their ability to grow, learn, and participate meaningfully in society. Beyond impacting bodily integrity, play, interaction with other species and control over one's environment by virtue of being confined, juvenile justice has the following collateral consequences.

Collateral Consequences of Juvenile Justice Involvement

Psychological and Physical Harms

Juvenile detention threatens bodily health and emotional well-being, exposing children to violence, isolation, and chronic stress. The Pathways to Desistance longitudinal study of 1,354 adolescent offenders shows that 75% of youth in residential facilities reported witnessing violent incidents between their peers. Additionally, 17% experienced victimization by fellow residents. Nearly two-thirds observed conflicts between staff and residents, while almost 10% reported being harmed by staff members⁹. Although this report dates back to 2014, NPR reports that in 2024, the nation saw a flurry of abuse lawsuits alleging sexual misconduct in four different states, with at least 300 plaintiffs claiming injury at the hands of juvenile justice officers¹⁰.

The physical and emotional trauma experienced by justice involved youth offenders places them at increased risk for risky sexual behaviors¹¹. This consequently decreases the

⁹ Edward P Mulvey, Carol A Schubert, and Alex Piquero, "Pathways to Desistance – Final Technical Report" (National Criminal Justice Reference Service, January 2014), <https://www.ojp.gov/pdffiles1/nij/grants/244689.pdf>.

¹⁰ Meg Anderson, "Youth Detention Facilities Face Increased Scrutiny amid a Wave of Abuse Lawsuits," *NPR*, May 17, 2024, sec. National, <https://www.npr.org/2024/05/17/1251963778/youth-detention-juvenile-crime-sexual-abuse-lawsuits>.

¹¹ Karen Hughes et al., "The Effect of Multiple Adverse Childhood Experiences on Health: A Systematic Review and Meta-Analysis," *The Lancet. Public Health* 2, no. 8 (August 2017): e356–66, [https://doi.org/10.1016/S2468-2667\(17\)30118-4](https://doi.org/10.1016/S2468-2667(17)30118-4).

likelihood of these adolescents using safe sex practices and increases the spread of sexually transmitted diseases¹².

A study from 2019 finds that youth, especially girls, who had normal baseline levels of psychosocial well-being, when incarcerated, show significantly lower levels of psychosocial development during and after confinement¹³. One of their most concerning findings is that youth that are confined report significantly lower hopes of living till the age of 35, than both non-delinquent and non-confined youth, even after controlling for baseline development. Relatedly, their most robust finding was that confined youth were four times more likely to not complete high school, even after controlling for baseline psychosocial development. This finding was despite over 92% of their sample having access to educational services while in juvenile detention, suggesting that the long-term developmental effects of confinement can severely restrict opportunity.

Educational Opportunities

In this way, incarceration disrupts another central capability, education and cognitive development, since children in juvenile detention experience severe learning losses and struggle to reintegrate into schools, even though adolescents in the juvenile justice system have a statutory right to a publicly funded education comparable to their counterparts in traditional public schools¹⁴. Korman et al. (2019) analyzed trends in educational services for youth in

¹² Sonya S. Brady and Geri R. Donenberg, “Mechanisms Linking Violence Exposure to Health Risk Behavior in Adolescence: Motivation to Cope and Sensation Seeking,” *Journal of the American Academy of Child and Adolescent Psychiatry* 45, no. 6 (June 2006): 673–80, <https://doi.org/10.1097/01.chi.0000215328.35928.a9>.

¹³ Shelly Schaefer and Gina Erickson, “Context Matters: Juvenile Correctional Confinement and Psychosocial Development,” *Journal of Criminal Psychology*, 2019, 44–59, https://www.researchgate.net/publication/331708944_Context_matters_juvenile_correctional_confinement_and_psychosocial_development

¹⁴ Development Services Group, Inc., “Education for Youth in the Juvenile Justice System: Literature Review” (Office of Juvenile Justice and Delinquency Prevention, 2019), <https://ojjdp.ojp.gov/sites/g/files/xyckuh176/files/media/document/education-for-youth-in-the-juvenile-justice-system.pdf> and Jennifer L. Steele, Robert Bozick, and Lois M. Davis, “Education for Incarcerated Juveniles: A

juvenile justice schools using two years of data from the Civil Rights Data Collection (CRDC). Their study identified several shortcomings among states that provided sufficient data. The findings highlighted that: 1) students in juvenile justice schools had significantly lower access to advanced mathematics and science courses, 2) they did not pass Algebra 1 at rates comparable to their peers in traditional schools, and 3) they had fewer opportunities for credit recovery, despite a greater need for such programs. Moreover, they found that only 13 states provide confined youth equal access to educational services available to youth in the community, including GED preparation, and post-secondary courses. However, it is important to note that they only had comprehensive data for 18 states, and limited data availability for other states, which affects the reliability of this conclusion.

Higher education opportunities can also be further restricted as institutions may legally discriminate against applicants with juvenile adjudications, even though adjudications are not convictions, and do not indicate criminal guilt. Children's ability to develop senses, imagination and thought are therefore limited by virtue of incarceration and lack of education. This limits their future autonomy, reducing employment prospects and increasing economic instability.

Economic and Social Development

A 2017 analysis conducted by the Prison Policy Initiative shows that formerly incarcerated individuals are unemployed at a rate of over 27%, which is "higher than the total U.S. unemployment rate during any historical period, including the Great Depression"¹⁵. They also found a disproportional impact to minority groups, increasing unemployment up to 37

Meta-Analysis," *Journal of Education for Students Placed at Risk (JESPAR)* 21, no. 2 (April 2, 2016): 65–89, <https://doi.org/10.1080/10824669.2015.1133308>.

¹⁵ Lucius Couloute and Daniel Kopf, "Out of Prison & Out of Work: Unemployment among Formerly Incarcerated People," Web (Prison Policy Initiative, July 2018), <https://www.prisonpolicy.org/reports/outofwork.html>.

percentage points for black women. Even if they do get a job, the Brookings Institution found that majority of formerly incarcerated individuals receive an income that puts them well below the poverty line, further increasing risks of recidivism out of sheer desperation¹⁶.

Furthermore, a 2016 report by the Juvenile Law Center identifies eight kinds of costs imposed on juveniles in a state-by-state analysis. These costs are entirely borne by families, even when they include fees for evaluations mandated by the court, which is an unfair burden. For example, in Alameda County, California on average, for an incarcerated youth, “fines and fees would total almost \$2000,” and this cost is equivalent of two-month’s salary of a parent making federal minimum wage¹⁷.

Costs extend beyond those personally experienced by incarcerated youth. The Justice Policy Institute found that “the average state cost for secure confinement of a youth is \$588 per day (that’s \$214,620 per year)”¹⁸. Figure 2 shows that in some states, costs to incarcerate *one youth* have increased over 150% between 2014 and 2020. These increased costs were incurred without a justified proportionate decrease in crime, or quality of services provided to incarcerated youth.

Collateral Legal Consequences

Robert E. Shepherd Jr. highlights the many legal ramifications of adjudication to juveniles^{19,20}. These consequences weaken their social and political participation, a central

¹⁶ Adam Looney and Nicholas Turner, “Work and Opportunity before and after Incarceration” (Brookings Institute, March 2018), https://www.brookings.edu/wp-content/uploads/2018/03/es_20180314_looneyincarceration_final.pdf.

¹⁷ Source: Youth Radio podcast titled “Double Charged: The True Cost of Juvenile Justice.”

¹⁸ Justice Policy Institute, “Sticker Shock 2020: The Cost of Youth Incarceration” (Justice Policy Institute, July 2020), https://justicepolicy.org/wp-content/uploads/2022/02/Sticker_Shock_2020.pdf.

¹⁹ Robert E. Jr. Shepherd, “Collateral Consequences of Juvenile Proceedings: Part I Juvenile Justice,” *Criminal Justice* 15, no. 2 (2000): 59–62.

²⁰ Robert E. Jr. Shepherd, “Collateral Consequences of Juvenile Proceedings: Part II Juvenile Justice,” *Criminal Justice* 15, no. 3 (2000): 41–48.

capability identified by Nussbaum. For instance, individuals with a juvenile record may face barriers to military enlistment. In some states, juvenile records can even be used to challenge an eyewitness's credibility in unrelated legal proceedings, further limiting their capability of affiliation and seeking justice, as outlined by Nussbaum, since they can no longer protect the rights of other people due to their testimonies being arbitrarily dismissed and silenced. Bailey's work on epistemic injustice would classify this as an act of testimonial injustice, as an unjust limit posited on one's power to exercise freedom of speech and other rights of citizenship.

Other legal repercussions include sentencing enhancements. Although juvenile adjudications do not indicate criminal guilt, they can be counted as a "first" offense in states with "three strikes" laws, leading to harsher penalties in adulthood. In cases involving sex-related offenses after age 14, mandatory sex offender registration can impose extreme restrictions on housing, education, government benefits, and mobility. Additional legal consequences may include the suspension of the right to bear arms until appealed and court-determined driver's license suspensions.

Risk of Recidivism

According to the Department of Justice's Office of Juvenile Justice and Delinquency Prevention, "historically, these services [juvenile detention] have been focused on the juvenile and the development of rehabilitation plans to help young offenders become productive, law-abiding members of society". However, recent studies that control for the juvenile's backgrounds have found that compared to probation and community-based alternatives, incarceration had the highest rate of recidivism. A long-term study of youths in Seattle found that juveniles that were incarcerated in adolescence were four times as likely to be incarcerated in adulthood.²¹ Although

²¹ Amanda B. Gilman, Karl G. Hill, and J. David Hawkins, "When Is Youths' Debt to Society Paid off? Examining the Long-Term Consequences of Juvenile Incarceration for Adult Functioning," *Journal of*

the limited sample size and localized location of this study do not allow for national generalization, there is enough data to pose a concerning question – if juvenile incarceration does not seem to fulfil its intended mission, and instead creates additional harms and fiscal costs for the child, their family and to society at large, what is the purpose of confining, abusing and limiting the development, freedoms and capabilities of our children? This is the question Parts Two and Three will aim to address.

Developmental and Life-Course Criminology 1, no. 1 (March 1, 2015): 33–47, <https://doi.org/10.1007/s40865-015-0002-5>.

Part Two: The School to Prison Pipeline

The school-to-prison pipeline is a result of harsh disciplinary rules in schools and juvenile justice policies that disproportionately harm marginalized youth, reinforced by racialized representations and biased institutional relationships. This systemic cycle criminalizes children, particularly Black, Hispanic and economically disadvantaged youth, pushing them into incarceration and limiting their future opportunities. The story of Mike Owens showcases the interaction of various social factors that contribute to the school to prison pipeline in a systematic manner.

By the time I entered middle school, I had already accepted that my place in this world was among the gangsters of the criminal subculture. The adults in my life—my mother, a few teachers, a principal—began telling me that I would be dead or in jail by 21. I believe they meant it as a kind of tough love warning. They had no way of knowing that I already felt my future would inevitably lead me to prison or an early grave. I felt safest when my peers feared me and most valued while participating in organized criminal activity. I accepted incarceration and danger as simply part of my fate. Whenever I tried to think about the future, I just felt an enormous black hole looming before me. At 12-years-old, I experienced but could not articulate this intense level of hopelessness.²²

When identifying an issue as structural or systemic, one is implying that the problem is about more than just personal choice. Rather, it is rooted in the broader interconnections between these choices and the societal arrangements that shape expectations and behaviors. This paper will attempt to show that the criminalization of children is not accidental but the result of

²² Kalinda Jones et al., “Seen But Not Heard: Personal Narratives of Systemic Failure Within the School-to-Prison Pipeline,” *Taboo: The Journal of Culture and Education* 17, no. 4 (December 20, 2018), <https://doi.org/10.31390/taboo.17.4.04>.

historical systems of racial and economic control, evolving into modern policies that exclude, over-police, and incarcerate marginalized communities.

“My family’s dysfunction was violence in all its forms”, says Mike Owens, in his reflections on the school to prison pipeline. He talks about being physically and emotionally abused at the hands of his parents, who left him in the care of his older sister that sexually assaulted him. “The effects of my traumatic home life severely handicapped my ability to recognize school as important”, Mike says, and anyways, “[his] school principal and all my teachers seemed interested in one thing: [his] obedience.”²³

In response to claims that the harms caused to detained juvenile populations are justified consequences of their actions, Dr. Jonathan Eastwood, in his new book “Social Structures”, suggests that the problem comes from the way our society is organized, which in turn influences individual choices. In such a world, blaming children for actions they take within structures they cannot control is like blaming a pedestrian victim of a car crash because the traffic lights weren’t working.

Eastwood identifies the following basic forms of social structures, the three R’s – relationships, representations and rules, that are interrelated in complex ways. This section will first attempt to identify the social structures of the juvenile justice system and then connect them to the harms they cause to vulnerable children identified in part one.

Recognizing Historical Context

Before discussing modern social structures that make up the school to prison pipeline, it is vital to briefly acknowledge the historical context of these systems, even if this paper cannot address all the details of the long legacy of racism and inequality in the United States. This

²³ *Ibid.*

legacy is deeply rooted in the nation's history of slavery and the systemic disenfranchisement of Black Americans and immigrants during and after Reconstruction. While constitutional amendments promised equality, these gains were quickly undercut by white supremacist violence, Black Codes, and the Jim Crow system; rules that reimposed racial subordination through segregation and legal discrimination. While landmark legal decisions like *Brown v. Board of Education* (1954) and civil rights legislation in the 1960s promised desegregation and equal access, but the 1973 Supreme Court ruling in *San Antonio v. Rodriguez* undermined this progress by declaring education was not a constitutional right, leaving public education vulnerable to discretionary funding and political manipulation within each district.

Scientific racism and policies inspired by eugenics further institutionalized racist representations, legitimizing sterilization and marginalization of people deemed "inferior". These views resurfaced in criminal justice in recent history through myths like the "super predator," a term used by national figures like Hillary Clinton in 1966 to describe youth of color as inherently dangerous. Such narratives fueled the War on Drugs launched by the Nixon administration in 1971 and justified racial profiling under the guise of public safety through the 1980s.

Modern Impacts of Racial Profiling

The impacts of these policies are felt even today. A study by the Public Policy Institute of California analyzed over 4 million stops by California's law enforcement agents in 2019, and they found significant correlation between race, police stop, searches and arrests. Some notable findings are that "Black Californians are more than twice as likely to be searched as white Californians, at about 20 percent versus 8 percent of all stops."²⁴ Ironically, they also found that searches of black civilians are less likely to yield contraband than searches of white civilians.

²⁴ Magnus Lofstrom et al., "Racial Disparities in Law Enforcement Stops," Public Policy Institute of California, accessed March 10, 2025, <https://www.ppic.org/publication/racial-disparities-in-law-enforcement-stops/>.

From stop-and-frisk policies to predictive policing algorithms²⁵, race is often used as a proxy for criminality, reinforcing a self-fulfilling prophecy where communities of color are disproportionately targeted, arrested, and incarcerated.²⁶ This fallacy is especially dangerous in juvenile justice, where children - who have not yet developed full cognitive maturity - are subjected to legal processes that assume their delinquency is an inevitable outcome rather than a response to socioeconomic and educational disadvantages.

Punitive Discipline in Schools

The ideology of “zero tolerance” school discipline, spurred by Nixon’s war on drugs and crime, led to the definitive rise of the school to prison pipeline over the 1980s and 1990s.²⁷ School discipline codes started replicating criminal penal codes across the states, with unreasonable mandatory minimum sentences of fixed “crimes” or offences regardless of context. “Three-strike laws”, signed in by President Bill Clinton in 1994, are also visible in public school disciplinary matrices, that require a person to be incarcerated/suspended at their third offense, regardless of severity of each alleged “crime”.²⁸

Virginia Laws

To address these issues, in 2020, Senator Jennifer McClellan passed Senate Bill 729, later turned into law, that allowed school principals to exert more discretion in referrals to law enforcement, since the previous legislation implied mandatory reporting of “possible misdemeanors”, which in historically over-policed areas with people of color, pushed minority

²⁵ Will Douglas Heaven, “Predictive Policing Algorithms Are Racist. They Need to Be Dismantled.” MIT Technology Review, accessed March 10, 2025, <https://www.technologyreview.com/2020/07/17/1005396/predictive-policing-algorithms-racist-dismantled-machine-learning-bias-criminal-justice/>.

²⁶ ACLU, “Racial Profiling.” - “In 2003, 13,740 foreign nationals were placed in deportation proceedings as part of the U.S. response to 9/11, but none have ever been publicly charged with terrorism.”

students into prison populations²⁹. However, in 2022, Governor Glen Youngkin rolled back the law. Youngkin and his supporter's reason for repealing this law was based on two in-school sexual assault cases which they claimed were covered up due to the discretionary reporting amendment, however, being felonious crimes, these assaults were already required to be mandatorily reported to law enforcement³⁰. Therefore, there was no valid justification to overturn the law.

The National Center for Juvenile Justice reported that although black youth constituted 15% of the juvenile population, they make up 35% of the delinquency caseload in 2019. 32% of those detained in juvenile centers in the same year, were there for “truancy” – that is, they were being separated from their homes and missing school, *as a consequence for missing school*, which is a rather ironic and unproductive use of the State and the family's time and resources.³¹

Undertrained and Overworked Teachers and School Resource Officers

Many teachers and school resource officers (SROs) lack the training necessary to handle behavioral issues in a way that is developmentally appropriate and non-punitive. Studies indicate that teachers, particularly in underfunded schools, are more likely to discipline students of color and recommend harsher punishments than for the same infractions committed by white students³². Similarly, SROs – who, in the State of Virginia, are police officers trained only for

²⁹ Brendan Shillingford and Anya Sczerzenie, “New Virginia Laws Seek to Close ‘School-to-Prison Pipeline,’” *AP News*, December 3, 2020, <https://apnews.com/general-news-1c407c5efd8f05fa8be8e24c853c3f4e>.

³⁰ Corey Mitchell, “Virginia Wanted to Report Fewer Kids to Police. Now It's Reversed Course.,” Center for Public Integrity, February 24, 2022, <http://publicintegrity.org/education/criminalizing-kids/virginia-report-kids-police-reversed/>.

³¹ Charles Puzzanchera, Sarah Hockenberry, and Melissa Sickmund, “Youth and the Juvenile Justice System: 2022 National Report” (National Council of Juvenile and Family Court Judges, December 2022), <https://ncjfcj.org/wp-content/uploads/2023/01/2022-national-report.pdf>.

³² Emily Boudreau, “Measuring Implicit Bias in Schools,” Harvard Graduate School of Education, August 11, 2020, <https://www.gse.harvard.edu/ideas/usable-knowledge/20/08/measuring-implicit-bias-schools>.

four days on assignment to a school³³ - are prone to escalating minor disciplinary issues into legal infractions. The presence of SROs in schools has been linked to higher arrest rates for nonviolent offenses, such as disorderly conduct or truancy, further pushing students into the juvenile justice system.³⁴

Socio-Economic Status and Incarceration

Poverty is a key determinant in juvenile justice involvement. Families with limited financial resources are more likely to live in underfunded school districts with higher dropout rates, fewer mental health resources³⁵, and a stronger police presence. Many of these children also have family members who have experienced incarceration³⁶, which further increases their likelihood of contact with the criminal justice system. Research conducted by the National Institute of Health, studying 4,327 families from 20 cities who participated in a 10-year longitudinal study, showed that children with an incarcerated parent are significantly more likely to be arrested themselves due to factors such as unstable housing, unmet emotional needs, and academic struggles.³⁷ This generational cycle of justice involvement demonstrates how economic policies, such as the lack of funding for early childhood intervention programs and social services, contribute to the maintenance of the pipeline.

³³ Virginia Department of Criminal Justice Services, “School Resource Officers,” Public Safety Training and the Virginia Center for School and Campus Safety, accessed March 10, 2025, <https://www.dcjs.virginia.gov/virginia-center-school-and-campus-safety/school-resource-officers>.

³⁴ Lucy Sorensen and Avila-Acosta Montserrat, “Navigating the Tradeoffs of Police in Schools,” Brookings, September 7, 2023, <https://www.brookings.edu/articles/navigating-the-tradeoffs-of-police-in-schools/>.

³⁵ Emma Garcia and Elaine Weiss, “Education Inequalities at the School Starting Gate: Gaps, Trends, and Strategies to Address Them” (Economic Policy Institute), accessed March 10, 2025, <https://www.epi.org/publication/education-inequalities-at-the-school-starting-gate/>.

³⁶ Ames Grawert and Terry-Ann Craigie, “Mass Incarceration Has Been a Driving Force of Economic Inequality,” Brennan Center for Justice, November 4, 2020, <https://www.brennancenter.org/our-work/analysis-opinion/mass-incarceration-has-been-driving-force-economic-inequality>.

³⁷ Juan Del Toro, Adam Fine, and Ming-Te Wang, “The Intergenerational Effects of Paternal Incarceration on Children’s Social and Psychological Well-Being from Early Childhood to Adolescence,” *Development and Psychopathology* 35, no. 2 (May 2023): 558–69, <https://doi.org/10.1017/S0954579421001693>.

District Inequalities and Lack of Community Resources

School districts with high minority populations are disproportionately underfunded, leading to fewer guidance counselors, school psychologists, and after-school programs that could serve as intervention points for at-risk youth.³⁸ EdTrust’s analysis of state-by-state data on education and funding from 2022 shows that racially integrated schools with higher populations of black, Hispanic and Native American students receive as much as \$2700 less in state and local funding than school districts with majority white populations.³⁹ At the same time, the 2022 National Assessment of Educational Progress found that Black and Latino students experienced larger-than-average dips on fourth grade tests, widening already significant test score gaps compared to White and Asian American students.⁴⁰

Classroom Atmosphere

A study investigating the impacts of exclusionary discipline on non-suspended students compiled data as part of the Kentucky School Discipline Study and “used multilevel methods that capitalize on the explanatory power of longitudinal data” to find causal associations between the frequency of out of school suspensions and reduced academic achievement of non-suspended peers in the classroom. Their findings illustrate a diminishing marginal utility of punitive discipline, wherein a modest increase in academic achievement, to about the mean level of exclusionary discipline, after which achievement begins to decline rapidly with increased suspensions.⁴¹ Therefore, while punitive discipline might have its benefits in extreme cases, in

³⁸ EdTrust, “School Districts That Serve Students of Color Receive Significantly Less Funding,” EdTrust, December 8, 2022, <https://edtrust.org/press-room/school-districts-that-serve-students-of-color-receive-significantly-less-funding/>.

³⁹ *Ibid.*

⁴⁰ *Ibid.*

⁴¹ Brea L. Perry and Edward W. Morris, “Suspending Progress: Collateral Consequences of Exclusionary Punishment in Public Schools,” *American Sociological Review* 79, no. 6 (December 2014): 1067–87, <https://doi.org/10.1177/0003122414556308>.

greater quantities, it harms the students it aims to protect, and this harm is compounded in school districts with greater instances of exclusionary discipline.

What Is the Point?

By failing to acknowledge how systemic racism structures legal outcomes, policymakers and law enforcement officials continue to uphold a framework in which marginalized youth are disproportionately funneled into the school-to-prison pipeline. Understanding racial profiling as a product of structural inequality, rather than an issue of individual bias, is crucial in dismantling these harmful practices.

In Part One we asked the question – why was punitive discipline the chosen tool for juvenile justice when it causes so many harms?

Adam Mortera, arrested at 17 for a gang-related murder and the Founder and Director of Juvenile Justice Advocates of California, describes the incarceration system bluntly⁴². He says, “[p]eople say that the system is flawed, but it isn’t flawed. The system is working perfectly the way it was intended to work”.

Adam Mortera, Mike Owens and Catherine Jones’s lives are stories of trauma, resilience and hope, and the latter was featured in a series “revealing the humanity of those given life sentences by asking the [fundamental] question: What obligations do we have as a community of not leaving them behind?”. I hope to answer this question in Part Three.

⁴² Editor’s note from source: This is Part 1 of “YA Babies: Stories from Inside California Youth Authority” — an oral history of life inside California’s notorious juvenile prison system. The California Youth Authority made up a series of juvenile prisons focused on education, treatment, and intervention. Male and female wards entered the Youth Authority as young as 14, inspiring the term “YA Babies.”

Part Three: Advocating for Restorative Solutions

As Dr. Jonathan Eastwood's model of social structures highlights, the school to prison pipeline is upheld by rules that impose harsh punitive discipline, representations that frame marginalized youth as inherently dangerous, recommending punishment as the only solution, and relationships between students, educators, and law enforcement that are shaped by systemic bias and mistrust. These elements interact to create a reality in which vulnerable children are punished rather than supported, further embedding racial and economic disparities into the justice system.

Meaningful reform requires a shift away from punitive policies toward restorative justice practices, increased investment in underfunded schools, and the dismantling of racial biases in juvenile justice. Without systemic change, marginalized youth will continue to be denied their right to education and a future free from incarceration.

Having identified the causes and consequences of discriminatory juvenile adjudication and its lasting collateral effects, Part Three will build upon this foundation by exploring evidence-backed solutions to dismantle the school-to-prison pipeline. By drawing from successful policy interventions, restorative justice frameworks, and community-based initiatives, the final section of this paper will propose strategies aimed at breaking this cycle and ensuring that all children, regardless of race or socioeconomic status, have access to a fair and supportive educational environment.

However, I will acknowledge that even the most perfect standardized educational programs in theory will have differences in practical implementation arising from disparities in resources, structures and student needs from district to district. This is why, having worked with them for the last four years, I have elected to recommend policy changes catering to Rockbridge

County Public Schools. While certain aspects of my proposal are unique to Rockbridge County, majority of the discussion below should be generally applicable to most public schools across the States.

Contextual Statistics

Refer to this [pdf document](#)⁴³ for detailed data analysis of seclusions and restraints across Virginia between 2021-2024 (which are occurring despite Virginia making it illegal to seclude or restrain a child in school). The raw data in this report comes from the Virginia Department of Education Statewide School Climate reports, with Rockbridge County selected. Also refer to Figure 3 for a graph showing chronic absenteeism as a severe concern for economically disadvantaged children and students with disabilities in Rockbridge County, compounding over time as students progress from elementary to high school, at a rate significantly higher than the rest of the student body.

What is Restorative Justice?

Restorative Justice is a set of principles and practices that create a different approach towards crime and consequences. According to the University of Wisconsin-Madison Law School, “instead of viewing a criminal act as simply a violation of a rule or statute, restorative justice sees this action as a violation of people and relationships.”⁴⁴ Restorative justice does not shy away from consequences, however, it involves the actor, victim, and community members in an exploration of harm, rehabilitation and reflection, to address root causes of conflict, in an

⁴³ I analyzed Virginia Department of Education’s publicly available data on School Climate, to create visualizations and data summaries that would illustrate the educational atmosphere in Rockbridge County and the State at large. This file is a publicly available box file.

⁴⁴ University of Wisconsin-Madison Law School, “About Restorative Justice,” Restorative Justice Project, accessed April 5, 2025, <https://law.wisc.edu/fjr/rjp/justice.html>.

effort to prevent recurrence. In practice, this can take the form of prevention and response to wrongdoing, and models of both are illustrated below.

Calm Corner

When individuals are excluded from a social environment, such as a classroom, they experience social rejection. Research has shown that when rejection is powerfully elicited – such as being suddenly excluded from a game of catch or being shown a picture of an ex-partner – areas that support sensory components of physical pain are activated.⁴⁵ While some might counter by saying that students knowingly act out at risk of punishment, which is different than unexpected social rejection, projects one and two show that disabled, economically disadvantaged and racially diverse children are disproportionately disciplined. When they are punished for the same actions that are not acknowledged when carried out by their peers, I argue that this is a form of unexpected social rejection.

At the same time, I am willing to accept that regardless of justice or bias, teachers are often ill-equipped to deal with behavioral disruptions in the classroom and have to find a way to continue teaching to fulfil their *prima facie* duties as educators. In response, I propose that elementary and middle school classrooms be equipped with “calm corners” (refer to figure 4), or areas of the classroom equipped with fidget toys and visuals demonstrating emotional regulation and meditation techniques. Teachers that notice students feeling dysregulated or inattentive can direct them to the corner of the classroom to quickly engage in some attention building or breathing techniques, allowing them to de-escalate potential conflicts without disrupting teaching. I also propose that similar corners be situated in the Principals’ office, library, and

⁴⁵ Ethan Kross et al., “Social Rejection Shares Somatosensory Representations with Physical Pain,” *Proceedings of the National Academy of Sciences* 108, no. 15 (April 12, 2011): 6270–75, <https://doi.org/10.1073/pnas.1102693108>.

other rooms used for detention, with additional reflection worksheets (or digital exercises for younger students) that will allow a child to identify emotions that are coming up, describe the situation that led them there, and build socio-emotional awareness and promote learning rather than isolate them without explanation or opportunity to self-correct or regulate their behavior. This proposal is modified from “peace corners” used by Montessori schools⁴⁶, with the key difference being that Montessori peace corners are private spaces for children to use as they please, whereas the calm corner is an addition to the classroom, as an alternative to detention and in school suspension within the existing disciplinary system.

Considering the cost of a few toys and paper worksheets is minimal, and that Rockbridge county schools already use technology such as chrome books in all classrooms, I can anticipate only one major objection to the calm corner. That is, “what if children take advantage of the calm corner – wouldn’t it be unfair that one student has to sit still and pay attention while another kid gets to say they are dysregulated, and go play with fidget toys?”

While I recognize the quest for equality, I would push back by saying that the first child is *able* to sit still and pay attention, while the other is advocating for their need for accommodations so that they can also become able to pay attention. Second, I do not think that the potential for misuse of a calm corner is a reasonable objection that has equal moral weight comparable to the harms of exclusionary discipline outlined above. As long as provisions against misuse are implemented, such as a time limit and limited frequency (such as only 2/3 times a week) beyond which a counselor would need to be involved to address the extensive need for accommodations, I believe that all children would equally benefit from the calm corner.

Furthermore, I believe this calm corner will be most beneficial if implemented early on in a

⁴⁶ Heather White, “Peace Corners: Creating Calm the Montessori Way,” Blog, *Guide and Grow* (blog), accessed April 6, 2025, https://www.guideandgrow.com/peace_corners/.

child's educational trajectory, so that by the time they get to high school and/or university, they will be armed with an array of self-

Restorative Circles

If a student's disruption is not just distracting, but actively harmful, i.e., it is a threat to the well-being and safety of the classroom, there might be no option but to quickly and safely remove them from the immediate vicinity of other students and address the situation privately. In such a situation, when the *prima facie* duties of an educator (to educate all children equally and to keep students safe) come in conflict, *pro tanto* principles allow them to choose one over the other, while also creating an obligation to rectify any harms caused by their choice.

Although Virginia laws mandatorily require the school Principal to report any potential misdemeanors to law enforcement, law enforcement are under no obligation to charge the child. Pre-charge diversion programs such as Restorative Circles allow teachers, students and even family members and victims to come together and create accountability for harms caused, while also respecting the diverse backgrounds and circumstances that might have created the situation, without escalating the conflict to the courtroom. This proposal aligns with Robin Zheng's suggestion that formative moral criticism is particularly well suited to address harms, since it recognizes each individual's right to feedback and opportunities for growth when "our limited, imperfect and structurally constrained agency falls short of moral ideals".⁴⁷

Some might say that children deserve consequences for their actions, and using programs like a Restorative Circle would be "going too soft" on them, leaving them unprepared for the real world. To them, I would point out the data on recidivism and greater likelihood of adult involvement in criminal justice post juvenile adjudication cited in Project One. The existing

⁴⁷ Robin Zheng, "Moral Criticism and Structural Injustice," *Mind* 130, no. 518 (April 2021): 503–35, <https://doi.org/10.1093/mind/fzaa098>.

systems aren't preparing the children for the real world, they are teaching children to fear authorities and resent school. However, schools that implemented restorative solutions have shown to actually reduce fighting in bullying in schools, and a decrease in office referrals, suspensions and expulsions^{48,49}.

Another relevant objection to this proposal is the required involvement of the victim in this circle for any successful outcome. Some might say that this is an undue burden placed upon the victim. In recognition of that fact, I would propose that this service be entirely voluntary for the victim and reiterate that the circle is not intended to ignore harms caused, but to recognize it and create an agreed upon consequence with the input of both the victim, the alleged student and the support staff available to them. Morally, I would cite Marion Young's work on political responsibility, outlining the role of all actors in society, including the victims of unjust structures, in addressing structural harms caused by them, since no real change can be effected without collective action.

⁴⁸ Lewis, S. (2009). Improving school climate: Findings from schools implementing restorative practices. International Institute for Restorative Practices; McCold, P. (2002). Evaluation of a restorative milieu: CSF Buxmont school/day treatment programs 1999–2001. International Institute for Restorative Practices E--Forum; McMorris, B. J., Beckman, K. J., Shea, G., Baumgartner, J., & Eggert, R. C. (2013). Applying restorative practices to Minneapolis Public Schools students recommended for possible expulsion: A pilot program evaluation of the Family and Youth Restorative Conference Program. School of Nursing and the Healthy Youth Development--Prevention Research Center, Department of Pediatrics, University of Minnesota.

⁴⁹ Armour, M. (2013). Ed White -Middle School restorative discipline evaluation: Implementation and impact 2012/2013. Institute for Restorative Justice and Restorative Dialogue; Baker, M. (2009). DPS Restorative Justice Project: Year three. Denver Public Schools; Davis, F. (2014). Discipline with dignity: Oakland classrooms try healing instead of punishment. *Reclaiming Children and Youth*, 23(1), 38–41; Fronius, T., Darling--Hammond, S., Persson, H., Guckenburg, S., Hurley, N., & Petrosino, A. (2019). Restorative justice in U.S. schools: An updated review. WestEd Justice & Prevention Research Center; González, T. (2015). "Socializing Schools: Addressing Racial Disparities in Discipline Through Restorative Justice" in Losen, D. (Ed.). *Closing the School Discipline Gap: Equitable Remedies for Excessive Exclusion* (pp. 151–165). Teachers College Press; Hashim, A., Strunk, K., & Dhaliwal, T. (2018). Justice for all? Suspension bans and restorative justice programs in the Los Angeles Unified School District. *Peabody Journal of Education*, 93(2), 174–189; Jain, S., Bassey, H., Brown, M., & Kalra, P. (2014). Restorative justice in Oakland schools: Implementation and impacts (prepared for the U.S. Department of Education Office for Civil Rights). Oakland Unified School District; Sumner, D., Silverman, C., & Frampton, M. (2010). School--based restorative justice as an alternative to zero--tolerance policies: Lessons from West Oakland. University of California, Berkeley, School of Law.

Over three years, the Center for Justice Innovation worked in five New York City schools to implement a restorative justice model, making abundant use of harm, support and re-entry circles⁵⁰. The biggest ethical dilemma they pose is the great burden added to an already under-resourced public school system. Which is why I reached out to Communities in Schools, an initiative that annually allocates over \$5 million in funding to public schools in Virginia to help them meet non-academic needs, like socio-emotional learning programs and mental health trainings for teachers. They are dedicated to building closer knit supportive communities and are attempting to escalate their impact to reach more schools around the state, and Rockbridge County can be one of their schools, helping create communities that care.

Student Advocates

For children that get receive repeated disciplinary warnings or are causing harm to others and aren't able to self-correct using calm corners or restorative solutions, summative criticism in the form of punitive or exclusionary discipline might be the only recourse. However, even within the disciplinary matrix there are ways to protect the dignity and capability of these students, ensuring that they are adequately represented. Students, especially those with disabilities, have the right to a disciplinary hearing, to appeal disciplinary decisions and to representation at all hearings, as per Virginia State law⁵¹. However, this right is not always exercised according to Ms. Leyna Hansley, school counselor at Maury River Middle School. Since counselors that are established supports for the students cannot represent them at hearings, and parents/guardians cannot always be there due to work obligations, there is a gap in resources that needs to be

⁵⁰ Center for Court Innovation, "Restorative Justice in Schools," January 2020, <https://www.innovatingjustice.org/publications/Restorative-Justice-Schools-Implementation-Process>.

⁵¹ Virginia Law, "Title 22.1 Education, Chapter 14, Article 3. Discipline," accessed April 6, 2025, <https://law.lis.virginia.gov/vacodefull/title22.1/chapter14/article3/>.

addressed. My proposal is for the same Communities in School funding referenced above to also appoint Student Advocates. Similar models are adopted at many higher education institutions, including Washington and Lee, where a student appearing in front of a disciplinary committee is appointed an advisor or advocate (called Hearing Advisor at W&L) that is aware of the intricate rules and regulations involved in the process, in order to wholly safeguard the rights of the student and protect against biased or incompetent committees. They would work similarly to a public defender, providing specialized services, but also referrals to available community resources, serving as a bridge between families and schools, in a capacity that the counselor cannot fulfil. Provided that this service is voluntary (i.e., it is built on volunteers and it's accessing these services is voluntary), protecting the rights of students codified in state law, and funded by privately sourced grants, I see no moral objections to this proposal at present.

Existing Alternative Programs in Rockbridge County

Rockbridge County has resources such as the School Intervention Specialists (SIS) program, which provided behavioral support to at-risk students. However, according to Ms. Jenna Cline, the Head of Prevention Services at Rockbridge Area Community Services Board (RACSB), SIS only works with children to support their mental health and teach coping strategies rather than directly advocating for them in disciplinary hearings. Cline also talked about the prevention programs RACSB offers, including vaping and early alcohol use prevention programs for at risk youth, but engagement from at-risk communities remains low. The proposed dedicated advocacy model would help connect students to these underutilized services.

Rockbridge County High School and Maury River Middle School also adopted alternative education programs in 2023, wherein students who can get personalized instruction,

along with social and emotional support.⁵² Although this idea sounds great in theory, it is concerning that at Maury River Middle, these children (that have been categorized into three groups, Group 1: “behaviorally challenged” and “disruptive”; Group 2: “students with high levels of anxiety” and Group 3: those with learning disabilities) have been relegated to a classroom without windows in the basement, where they are supervised by teachers without special education training while they take classes online.^{53,54}

Ms. Angela Wilder, director of alternative education for Rockbridge County Public Schools says,

“Those students are able to express themselves, whereas a Gen Ed teacher might not have time in English class, to let them talk about, ‘My mom’s car broke down again and now she can’t get to work, and I have to go work part-time on the weekends and that’s why my papers not done,’ but they can sit and talk to Mr. Hinkle about these kinds of things”,⁵⁵

as she justifies the alternative program for “behaviorally challenged” and “disruptive students” that are at risk for suspension.

Pertinent Ethical Questions

In quoting this example, I wanted to emphasize that a lot of the students that have been separated from the general education classroom, and are at risk of suspension, are not receiving the support they need, but are instead being segregated just to ensure they complete their coursework, prioritizing academic requirements over their central capabilities and wellbeing.

⁵² Christian Basnight, “Alternative Education Program Sees Success at RCHS,” Rockbridge Report (blog), March 16, 2023, <https://rockbridgereport.academic.wlu.edu/2023/03/16/alternative-education-program-sees-success-at-rchs/>.

⁵³ Basnight, “Alt Ed at RCHS.”

⁵⁴ From interview with school counselor at Maury River Middle School, as well as personal volunteering experience at that school.

⁵⁵ Basnight, “Alt Ed at RCHS.”

However, although most people would agree that this specific student might not actually be behaviorally challenged based on available information, there are definite instances of classroom disruption that, under utilitarian theory, might morally justify excluding a *disruptive* child from the classroom for the “greater good” of the other students’ education and teacher’s well-being, even at the cost of the *disruptive* child.

Contractualism as a moral theory, according to Thomas Scanlon, makes the core claim that each person’s moral status is grounded in their dignity as a rational and autonomous agent, and moral acceptability of any social contract depends on whether each person could rationally reject them. Using this framework, I would argue that the extensive harms of exclusionary discipline cited in project one experienced by the detained, suspended or adjudicated delinquent child serve as reasonable objections. Utilitarians like Elizabeth Ashford would say that the awarding basic capabilities, in this case the right to education and equal and dignified treatment, to the *disruptive* student might create an unreasonable burden for the rest of the classroom. I would argue that by witnessing the exclusion of their peer, the other students in the classroom are also deprived of capabilities - having inadvertently been taught to make behavioral choices through fear of isolation or punishment - which creates a negative learning atmosphere for all students.

Furthermore, when we take into consideration that economically disadvantaged students, disabled children and children of color are disproportionately punished, a rule that allows the exclusion of a child at the discretion of possibly biased actors is unjust and also deprives the classroom of diverse opinions and perspectives brought by these students. In the calculation of net aggregate “good”, these costs experienced by all members of the classroom in my opinion,

serve as effective reasonable objections to the argument that *disruptive* children must be excluded from a classroom for the vague, undefined *greater good*.

What then, should an educator or judicial body do when a child is “acting out” or “misbehaving”? We cannot reasonably require a teacher to dispense their duty as an educator, their responsibilities of teaching the curriculum and creating class plans, and of keeping the classroom safe and then also enforce a duty of aid without providing additional resources. Since the biggest hindrance against contractual and utilitarian morality is the inefficiency of institutions such as public schools and courtrooms that create an unfairly distributed moral obligation for morally compliant individuals (like underpaid and overworked public school teachers), this proposal recommended programs and structures that will improve the efficiency of existing systems.

Conclusion

The current punitive structures in education and juvenile justice systems often fail to consider the full humanity of the children they affect, stripping away opportunities for growth, inclusion, and dignity. As this projects one and two have shown, exclusionary discipline disproportionately impacts marginalized youth, including students of color, those with disabilities, and those experiencing economic hardship. Restorative justice offers a path forward – one that centers the individual within a community, values their voice, and addresses harm without perpetuating cycles of isolation and punishment. Through programs like the Calm Corner, Restorative Circles, and Student Advocates, Rockbridge County has the potential to reimagine justice not as a tool for control, but as a process of healing and learning. These changes will not only benefit the so-called “disruptive” child but will uplift entire classrooms and communities. To truly honor the moral obligation, we hold toward each child, we must invest in

restorative approaches that repair harm while affirming dignity, capability, and shared responsibility.

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Figures

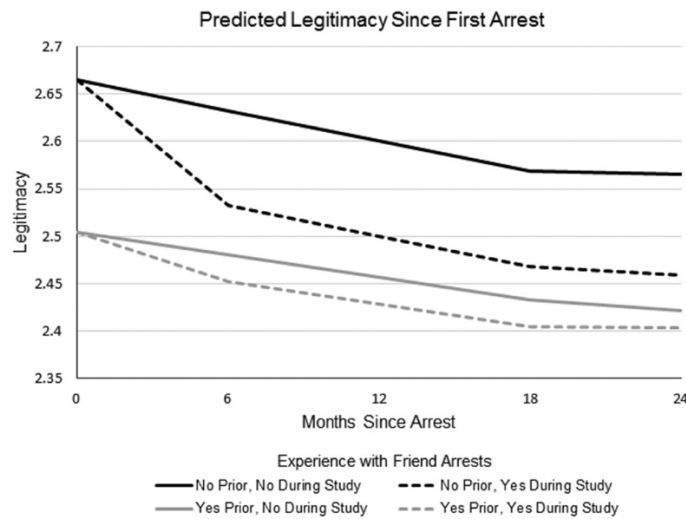


Figure 1: Crossroads Study - Growth Model of Legal System Legitimacy for the 24 months after first arrest

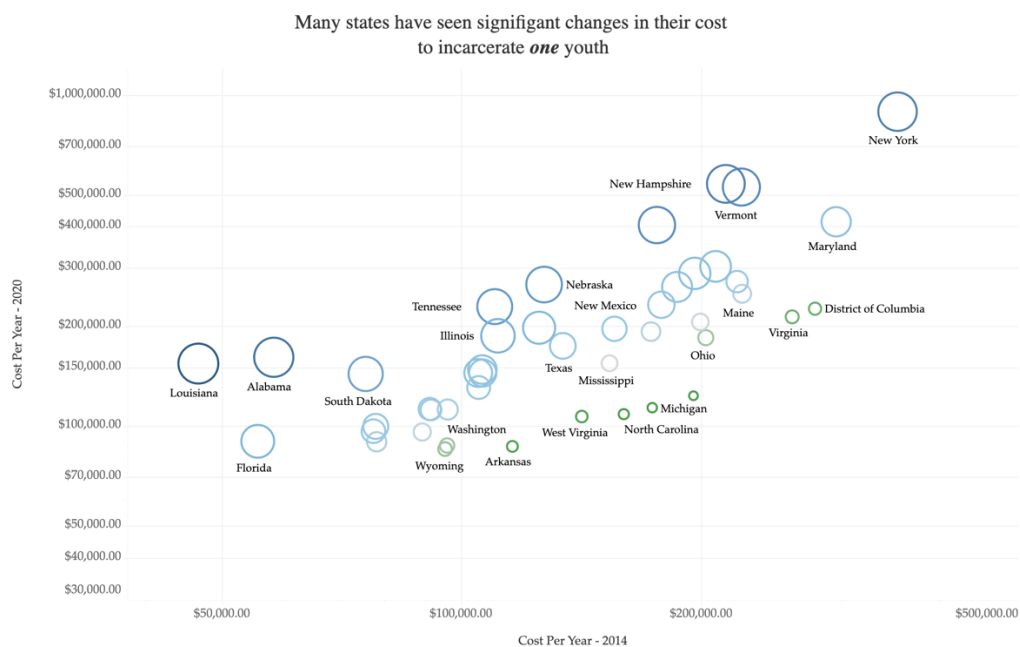


Figure 2: Data from Justice Policy Institute – State's Change in Cost to Incarcerate 1 Youth from 2014 to 2020

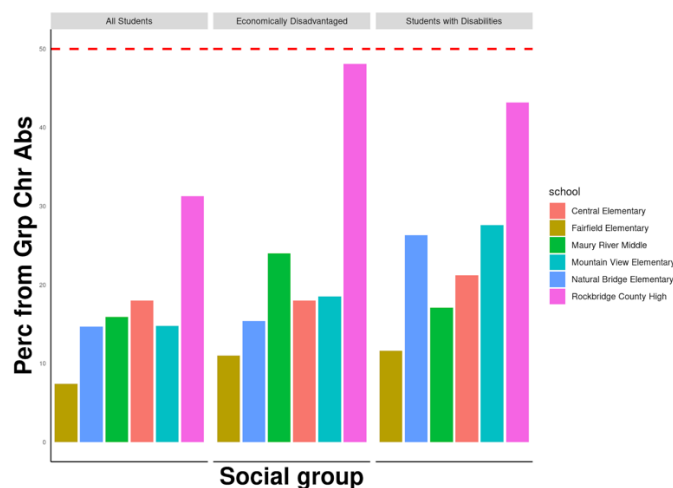


Figure 3: Chronic Absenteeism in Rockbridge County Public Schools – nearly 50% of economically disadvantaged kids in RC high school are considered “chronically absent”.



Figure 4: Picture of a Montessori Peace Corner